

Sz Hua Huang, individually and as successor in interest to Wei Lun Huang, deceased; Trinity Huang, a minor; Tristan Huang, a minor; Hsi Keng Huang; and Ching Fen Huang v. Tesla, Inc. and The State of California, Department of Transportation; 2024 Jury Verdicts LEXIS 163576

19CV346663

April 8, 2024

Headline: Family Of Deceased Driver Settles California State Product Liability Action Filed After Tesla Allegedly Negligently Promoted And Exaggerated Capabilities Of Its Autopilot System, Resulting In Car Crash

Party Names

Plaintiff(s):

Sz Hua Huang, individually and as successor in interest to Wei Lun Huang, deceased

Trinity Huang, a minor

Tristan Huang, a minor

Hsi Keng Huang

Ching Fen Huang

Defendant(s):

Tesla, Inc.

The State of California, Department of Transportation

Topic: PRODUCT LIABILITY - Tesla's Autopilot driver assistance system

Practice Area: Criminal Law and Procedure; Family Law; Torts; Transportation Law

Method of Resolution: Settlement

Case Resolution: Mixed

All Dates: 03/23/2018 Crash / Huang's Death

04/26/2019 Complaint Filed

2020 Accident Investigated

04/01/2020 Answer Filed

04/09/2024 Settlement

State: California

Court: California Superior Court, Santa Clara County

Plaintiff Counsel

Plaintiff Name: Sz Hua Huang, individually and as successor in interest to Wei Lun Huang, deceased

B. Mark Fong

Firm Name: Minami Tamaki LLP

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Tristan Huang, a minor; Hsi Keng Huang; and Ching Fe....

Seema Bhatt

Firm Name: Minami Tamaki LLP

Michael A. Kelly

Firm Name: Walkup Melodia Kelly & Schoenberger

Doris Cheng

Firm Name: Walkup Melodia Kelly & Schoenberger

Andrew P. McDevitt

Firm Name: Walkup Melodia Kelly & Schoenberger

Plaintiff Name: Trinity Huang, a minor

B. Mark Fong

Firm Name: Minami Tamaki LLP

Seema Bhatt

Firm Name: Minami Tamaki LLP

Michael A. Kelly

Firm Name: Walkup Melodia Kelly & Schoenberger

Doris Cheng

Firm Name: Walkup Melodia Kelly & Schoenberger

Andrew P. McDevitt

Firm Name: Walkup Melodia Kelly & Schoenberger

Plaintiff Name: Tristan Huang, a minor

B. Mark Fong

Firm Name: Minami Tamaki LLP

Seema Bhatt

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Doris Cheng

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Andrew P. McDevitt

Firm Name: Walkup Melodia Kelly & Schoenberger

Plaintiff Name: Hsi Keng Huang

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Firm Name: Minami Tamaki LLP

Seema Bhatt

Firm Name: Minami Tamaki LLP

Michael A. Kelly

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Firm Name: Walkup Melodia Kelly & Schoenberger

Doris Cheng

Firm Name: Walkup Melodia Kelly & Schoenberger

Andrew P. McDevitt

Firm Name: Walkup Melodia Kelly & Schoenberger

Plaintiff Name: Ching Fen Huang

B. Mark Fong

Firm Name: Minami Tamaki LLP

Seema Bhatt

Firm Name: Minami Tamaki LLP

Michael A. Kelly

Firm Name: Walkup Melodia Kelly & Schoenberger

Doris Cheng

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Defendant Counsel

Defendant Name: Tesla, Inc.

Thomas P. Branigan

Firm Name: Bowman and Brooke LLP

Joel Smith

Firm Name: Bowman and Brooke LLP

Daniel C. Posner

Firm Name: Quinn Emanuel Urquhart & Sullivan LLP

Lauren O. Miller

Firm Name: Tesla, Inc.

Defendant Name: The State of California, Department of Transportation

Landa Low

Firm Name: California Department of Transportation

Judge: Lori E. Pegg?

Case Summary

On March 23, 2018, 38-year-old Walter Huang, an Apple engineer and father of two, died after his Tesla Model X SUV, with Autopilot features switched on, crashed into a highway barrier near Mountain View, California.

On April 26, 2019, the family of Walter Huang initiated a wrongful death lawsuit against Tesla Inc., the manufacturer of Huang's vehicle, in the Superior Court of the State of California, County of Santa Clara, alleging Tesla's Autopilot driver assistance system misread lane lines on the road, did not detect the concrete median and

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did not brake the Model X, but accelerated into the barrier. Moreover, the Huang family accused Tesla of negligently promoting and exaggerating the capabilities of its Autopilot system, leading customers to incorrectly believe that their vehicles were capable of safely driving autonomously. The Huang family sought to hold Tesla liable for product liability, defective product design, failure to warn, breach of warranty, intentional and negligent misrepresentation, and false advertising. The complaint also named the California Department of Transportation (Caltrans) as a defendant for failing to replace a missing guard rail around the median that might have lessened the impact of the crash.

In response, Tesla contended that it provided clear disclosures and warnings stating that its driver-assistance systems were only meant to be used with an attentive driver ready to take control at any time. Additionally, Tesla argued that Huang misused the Autopilot system because he was playing a video game just before the accident.

In 2020, the National Transportation Safety Board (NTSB) investigated the accident and found that deficiencies in Tesla's Autopilot system, along with Huang's distraction by a cellphone game and excessive reliance on Autopilot, contributed to the crash. However, the Huang family noted in legal documents that the NTSB report mentioned insufficient data in the logs to determine whether Huang was holding the phone or actively engaged with the game during the crash.

On April 1, 2020, Caltrans, in its answer to the complaint, denied all allegations and claims for damages. Caltrans asserted various affirmative defenses, including contributory negligence by Huang and third parties, limited liability under California law, immunity under California Government Code provisions, failure to comply with claim filing requirements, and assumption of risk by Huang. Caltrans sought dismissal of the complaint and recovery of its costs.

On April 8, 2024, just before the commencement of the trial, Tesla and the Huang family informed the court and Judge Lori E. Pegg that they had reached a confidential settlement.